lative of constitutional rights of freedom of speech and of the press. P. 271.

9. The conviction of a labor leader for contempt of a state court, based upon his publication in the press of a telegram which he had sent to the Secretary of Labor, in which he criticized the decision of a judge in a case involving a labor dispute and indicated that enforcement of the decree would result in a strike, *held* violative of constitutional rights of freedom of speech and of the press. P. 275.

14 Cal. 2d 464, 94 P. 2d 983; 15 Cal. 2d 99, 98 P. 2d 1029, reversed.

CERTIORARI, 309 U. S. 649, 310 U. S. 623, to review, in two cases, the affirmance of convictions and sentences for contempt of court.

Mr. Osmond K. Fraenkel, with whom *Mr. A. L. Wirin* was on the brief, on the reargument for petitioner in No. 1. *Mr. Wirin* on the original brief and argument.

The power of state judges to punish for contempt is restricted by the due process clause of the Fourteenth Amendment to the same extent as is the power of the executive and legislative branches. *Brinkerhoff-Faris Co.* v. *Hill,* 281 U. S. 673, 680.

There are special reasons why judicial action in punishing for contempt should be subject to scrutiny on constitutional grounds. Where legislative action or executive action is in question, review is by a different branch of government. Not so in contempt cases. Here the judiciary reviews the acts of its own members. Moreover, in many cases, although not here, the action under review was taken by the very judge criticized in the publication complained of. And in all cases the procedure is summary, without the safeguard of trial by jury.

Where, as here, the act complained of is an expression of opinion concerning judicial action and the expression takes place outside of the courtroom, there can be no punishment unless the expression actually obstructed judicial action, or was intended improperly to influence